

For The vs Subodh Chandra Kumar) on 11 January, 2012

Author: Dipankar Datta

Bench: Dipankar Datta

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11.01.2012

C.O. 2392 of 2011

Mr. Haradhan Banerjee

Mr. P.P. Mukherjee

..... for the petitioner.

Mr. Sabyasachi Bhattacharya

Mr. S. Basu

..... for the opposite party.

1.

One Shri Anjan Kumar Mukherjee (hereafter Anjan) passed away on March 19, 2008, intestate. Petitioner, being the younger brother of Anjan, applied before the City Civil Court at Calcutta under Section 278 of the Indian Succession Act, 1925 (hereafter the Act) for grant of letters of administration in respect of the properties, movable and immovable, of Anjan. It gave rise to L. A. No. 15 of 2008.

2. It is pertinent to observe that in pursuance of an order passed in the aforesaid case, an inventory of the contents of a locker maintained by Anjan had been conducted. The contents included a marriage registration certificate in respect of a marriage having been solemnized by Anjan during his lifetime with the opposite party herein on May 7, 1990.

3. Subsequently, the petitioner applied for withdrawal of the said case on May 21, 2009 with liberty to sue afresh in accordance with law. By an order dated June 8, 2009, the learned Chief Judge, City Civil Court at Calcutta granted permission to the petitioner to withdraw the said case with liberty to sue afresh.

4. Soon after withdrawing the said case, the petitioner instituted a suit for declaration and injunction in the City Civil Court at Calcutta. He prayed for a decree declaring that the opposite party is a widow who did not re-marry Anjan; that Anjan was unmarried on the date he passed away

and that the petitioner is entitled to remove the movables found inside the locker, as described in the schedule; and a decree of permanent injunction directing the opposite party not to claim herself to be the widow of Anjan with further declaration that the purported marriage certificate is void ab initio and that status of Anjan had not been affected by the so called marriage registration certificate and that the opposite party has no right in respect of properties left behind by Anjan.

5. The opposite party, at or about the same time, had applied under Section 278 of the Act for grant of letters of administration in respect of two lockers mentioned in the schedule appended thereto, which were being operated by Anjan, with power to withdraw the contents and to operate the lockers. The petitioner, coming to learn of such application filed by the opposite party, filed an application seeking to object to grant of letters of administration, as prayed for by her. The learned Judge has rejected the prayer of the petitioner by an order dated May 17, 2011, which is challenged in this revisional application under Article 227 of the Constitution.

6. Mr. Banerjee, learned advocate appearing for the petitioner, contended that in view Section 283(1)(c) of the Act, he is entitled to contest the proceedings for grant of letters of administration instituted by the opposite party. According to him, Anjan died a bachelor and there was no valid marriage between him and the opposite party and, therefore, the latter being a stranger has no legal right to obtain letters of administration. The Court's attention was invited to the application filed by the opposite party and it was contended that she, with an intent to steal a march over the heirs of Anjan, deliberately did not mention the particulars of his relatives and their respective residences, as required by Section 278(1)(b) of the Act. It was further contended that being the brother and only heir of Anjan, he is entitled in law to contest the testamentary paper and the learned Judge ought to have allowed the prayer to contest. Stress was laid on institution of the suit by the petitioner, wherein the marriage registration certificate had been challenged, and it was submitted that the learned Judge grossly erred in the exercise of his jurisdiction in passing the impugned order.

7. In support of his submission that it is not for the testamentary Court to decide whether or not the opposite party is the duly married wife of Anjan and that a bare possibility of an interest in the estate of the deceased would be sufficient to entitle a party to oppose a testamentary paper, reliance was placed by Mr. Banerjee on the Bench decision of this Court reported in AIR 1970 Cal 433 (Sm. Annapurna Kumar v. Subodh Chandra Kumar).

8. He, accordingly, prayed for an order to set aside the impugned order and to direct the learned Judge to allow the petitioner to object to the grant of letters of administration, as prayed for by the opposite party.

9. Mr. Bhattacharya, learned advocate appearing for the opposite party, contended that the petitioner had failed to set up any valid claim for having leave to contest the prayer of the opposite party. According to him, the opposite party is a Class I heir of Anjan in view of the provisions contained in Section 8 of the Hindu Succession Act read with the schedule appended to such Act, and being his widow would have a better claim than that of the petitioner who, being the brother of Anjan, would fall within the category of Class II heir. He further submitted that so long the marriage registration certificate issued by the Registrar under Section 8 of the Hindu Marriage Act

acknowledging marriage of Anjan with the opposite party in March, 1990 is not declared void by the competent Court of law, before whom the suit instituted by the petitioner is pending, he is not entitled in law to have permission to object to the prayer of the opposite party. Referring to Section 8 of the Hindu Marriage Act, he contended that as it stands today, the opposite party is the widow of Anjan and if in future she loses such status by virtue of a declaration of Court, it would be open to the petitioner to seek revocation of the grant of letters of administration, if made in her favour in the meanwhile. He, thus, prayed for dismissal of the revisional application.

10. Learned advocates for the parties have been heard and the materials on record perused.

11. This Court would first consider the effect of registration of a marriage under Section 8 of the Hindu Marriage Act. For constituting a valid Hindu marriage, the same must be solemnized according to the customary rites and ceremonies of either party thereto [Section 7(1)]. If the customary rites and ceremonies include 'Saptapadi', the marriage becomes complete and binding when the seventh step is taken [Section 7(2)]. A registration of marriage in terms of Section 8 furnishes proof that a Hindu marriage has been solemnized according to customary rites and ceremonies of either party. Since it is optional for the parties to a marriage to have it registered, a marriage solemnized according to Section 7 is not invalidated by its non-registration. At the same time, should a marriage be not solemnized in terms of Section 7, mere registration of such marriage under Section 8 would not result in rendering it complete and binding between the parties. However, registration of a marriage under Section 8 raises a presumption that a marriage has been solemnized, unless the contrary is proved.

12. Contents of a Hindu marriage register are admissible as evidence of the statements contained therein. The marriage certificate that was recovered from the locker could not be produced before the Court. However, a photocopy of the certified copy was produced. At this stage, there is no material on record to enable the Court to presume that the copy of the certified copy is not a genuine document or that there was no marriage between the opposite party and Anjan, while he was alive, in accordance with the provisions of Section 7 of the Hindu Marriage Act. On the contrary, having regard to provisions contained in Section 114(e) of the Evidence Act, the Court may presume that the Registrar has validly registered the marriage between the parties on being satisfied that requirements of Section 7 have been fulfilled.

13. Next, the Court proceeds to consider the effect of Section 8 of the Hindu Succession Act on the rights of the parties to this application. In terms thereof, the property of Anjan would devolve upon the heirs specified in Class I of the schedule and if there be no Class I heir, then upon the heirs specified in Class II thereof. In view of the marriage certificate, at least at this stage, the opposite party has been successful in persuading the Court to believe that she is the widow of Anjan. The property of Anjan, therefore, must devolve upon her. If at all in future the opposite party loses the status of being a Class I heir of Anjan, the petitioner, being a Class II heir of Anjan, would come in the picture and may lay a claim on the property left behind by Anjan. The suit instituted by the petitioner is yet to be decided. In the event of the suit being decreed at a future date, it would be open to the petitioner to seek revocation of grant of letters of administration in favour of the opposite party, if ordered in the meantime.

14. Regarding the contention of Mr. Banerjee that the application of the opposite party does not meet the requirements of Section 278(1) of the Act, this Court is of the further view that the defect per se would not entitle the petitioner to object. It is curable and nothing turns on it for deciding this application.

15. On facts and in the circumstances, there is no reason to interfere, as rightly contended by Mr. Bhattacharya.

16. The decision in Annapurna Kumar (supra) does not come to the aid of the petitioner. The decision was rendered in a reverse case where the testamentary Court had proceeded to decide whether the appellant was the legally married wife of Sarat Chandra Kumar or not, who died intestate on April 14, 1936. In view of the findings of fact as recorded in paragraph 2 of the decision, the Bench allowed the appeal and set aside the order under challenge.

17. I hold that at present the petitioner has no caveatable interest and, therefore, the learned Judge was justified in rejecting his prayer.

18. The revisional application stands dismissed, without order for costs.

Urgent photostat certified copy of this order, if applied for, shall be furnished to the applicant at an early date.

(DIPANKAR DATTA, J.)